



Permitted Operations and Commissary Agreement

Optional 6% program; activate each location with a separate Site Activation Schedule

This Permitted Operations and Commissary Agreement (the “Program Agreement”) is entered into as of the Effective Date stated below by TGPACI LLC dba Bloomjoy Sweets (“Bloomjoy”) and the operator identified below (“Operator”). It is separate from any equipment sale and from Bloomjoy Plus. It does not sell, lease, transfer, or sublicense a health permit. Each site may operate under this Program Agreement only when the applicable authority permits the proposed structure and the parties sign a complete Site Activation Schedule.

Do not activate a site until every activation condition in Section 3 and Exhibit A is complete.

PARTIES AND PROGRAM INFORMATION

Effective Date	
Bloomjoy notice address	266 Thompson Ave, Mountain View, CA 94043
Bloomjoy notice email	legal@bloomjoysweets.com
Operator legal name	
Operator notice address	
Operator notice email	
Program contact	
Default Program Fee	6% of Net Sales for each Activated Site, unless its Site Activation Schedule states otherwise
Initial term	

PROGRAM TERMS

1. Purpose and Structure. The Program Agreement establishes a controlled, site-specific arrangement under which Operator may perform approved machine-operating services and may use a listed commissary or other approved facility, only to the extent authorized in an Active Site Schedule and by the applicable enforcement agency. The legal operator, permit holder, merchant of record, products, location, machine, and commissary are identified separately for each site. A Site Activation Schedule is “Active” only after all required signatures and written approvals are complete.

2. No Permit Transfer or Blanket Coverage. A food-facility or health permit remains with the person, location, activity, and time period for which the authority issued it. Nothing in this Program Agreement transfers, rents, sublicenses, or extends a permit. Operator will not use Bloomjoy’s name, permit number, commissary agreement, or regulatory relationship for a location or activity not expressly listed in an Active Site Schedule. A sale of Equipment and payment of the Program Fee do not create permit coverage.

3. Conditions to Site Activation. Before operation begins, the parties must complete Exhibit A; identify the permit holder and legal operating structure; obtain written confirmation or approval from the local enforcement agency when Bloomjoy reasonably requires it; obtain the commissary's written acknowledgment in Exhibit B or an equivalent document; confirm venue approval, equipment identification, approved products, food-safety procedures, trained personnel, insurance, payment processing, tax handling, records, and emergency contacts; and satisfy any additional agency condition. Bloomjoy may decline activation if the structure is unclear or exposes either party to unreasonable regulatory, safety, or reputational risk.

4. Bloomjoy Responsibilities. For each Active Site, Bloomjoy will perform only the responsibilities assigned to it in the Site Activation Schedule, which may include maintaining a listed permit or commissary agreement, communicating with an enforcement agency or commissary, providing approved operating procedures, reviewing required records, and coordinating inspections. Bloomjoy does not guarantee approval, uninterrupted permit status, or the continued availability of a particular commissary. Bloomjoy will give Operator reasonably prompt notice of a known suspension, restriction, or material change affecting an Active Site.

5. Operator Responsibilities. Operator will use only the identified Equipment at the approved location; use only approved ingredients, packaging, and processes; follow Bloomjoy's and the authority's food-safety, cleaning, temperature, labeling, allergen, handwashing, waste, pest-control, and incident procedures; ensure only trained and authorized personnel operate or service the Equipment; maintain accurate daily logs and transaction records; allow inspections; promptly correct deficiencies; and immediately report a complaint, illness allegation, contamination concern, pest issue, equipment hazard, agency contact, data-security event, or material venue change. Operator may not relocate the Equipment or materially change the menu, process, owner, or site configuration without written reactivation.

6. Commissary Access and Use. Commissary rights are limited to the facility, services, hours, storage, cleaning, waste, and access rules stated in the Active Site Schedule and Exhibit B. Operator receives no tenancy, ownership, or independent contract right unless the commissary separately agrees. Operator will sign in, keep areas sanitary, protect keys and access codes, use only assigned storage, remove waste as directed, and pay the fees allocated to Operator. Bloomjoy may suspend access immediately for a safety, security, payment, or compliance concern.

7. Program Fee and Net Sales. Operator will pay Bloomjoy the Program Fee in each Active Site Schedule, with 6% of Net Sales as the default. "Net Sales" means all amounts actually collected from sales through the Equipment or at the Active Site, less only: (a) sales or use taxes separately stated and actually remitted; (b) customer refunds actually paid; and (c) payment chargebacks actually assessed. Net Sales are not reduced by card-processing fees, venue rent or revenue share, labor, insurance, commissary fees, consumables, repairs, delivery costs, or other operating expenses unless the Site Activation Schedule expressly permits the deduction. The fee is compensation for the program services and access stated here; it is not a machine software license fee or a Bloomjoy Plus subscription.

8. Merchant of Record; Settlement and Taxes. Each Active Site Schedule identifies the merchant of record and settlement flow. If Operator collects revenue, Operator will deliver the monthly report in Exhibit C and pay the Program Fee within 15 days after month-end. If Bloomjoy collects revenue, Bloomjoy may deduct the Program Fee, processor fees, refunds, chargebacks, taxes, and any other schedule-authorized amounts before remitting the balance on the schedule stated in Exhibit A. The Site Activation Schedule allocates responsibility for sales-tax registration, collection, filing, and remittance. Each party remains responsible for its income and payroll taxes.

9. Reports, Records, and Audit. Operator will maintain complete sales, settlement, cleaning, commissary, training, ingredient-lot, maintenance, complaint, and inspection records for at least three years, or longer if law requires. Bloomjoy may access machine or processor data made available for the Active Site and may inspect relevant records on 10 business days' notice, or immediately for a safety or regulatory issue. If an audit finds an underpayment greater than 5%, Operator will promptly pay the shortfall, lawful interest, and Bloomjoy's reasonable audit cost. Operator will preserve records during any open claim or agency matter.

10. Regulatory Direction and Suspension. Operator will follow a lawful direction from Bloomjoy concerning food safety, permit conditions, commissary use, records, branding required by the authority, or suspension of an Active Site. Bloomjoy may suspend operation immediately if an approval expires or is questioned; a required record is missing; a payment is overdue; an authority, venue, commissary, insurer, or payment provider objects; or Bloomjoy reasonably believes continued operation may create a legal, health, safety, or reputational risk. Suspension does not transfer operating authority to Operator and does not waive accrued fees.

11. Equipment; Support; Bloomjoy Plus. Equipment ownership, warranty, and embedded software rights are governed by the applicable sale agreement or other ownership document. This Program Agreement does not modify them. Bloomjoy Plus remains an optional, separately purchased online subscription and is not included in the Program Fee. Termination of Bloomjoy Plus does not itself terminate this Program Agreement, and termination of this Program Agreement does not itself cancel Bloomjoy Plus.

12. Branding; No Territory or Franchise Representation. Operator may use only the names and marks specifically approved for an Active Site and only while that schedule remains active. Operator receives no exclusive territory and may not represent itself as the owner of Bloomjoy, a Bloomjoy employee, or the holder of a Bloomjoy permit. The parties intend a limited services and compliance arrangement, not the sale of a franchise or business opportunity. This statement does not override any law; the parties will amend or discontinue a structure if counsel or an authority determines another legal framework is required.

13. Insurance. Operator will maintain the insurance listed in each Active Site Schedule, issued by reputable carriers, and provide certificates before activation. Unless the schedule states otherwise, required coverage includes commercial general liability with product/completed-operations coverage, workers' compensation as required by law, automobile coverage for business transport, and property coverage for Operator-owned Equipment. Bloomjoy and any required venue or commissary party will be named as additional insureds when commercially available and stated in the schedule.

14. Mutual Indemnity. Each party will defend and indemnify the other and its personnel from a third-party claim to the extent caused by the indemnifying party's negligence, willful misconduct, violation of law, or breach. Operator's obligation includes claims arising from Operator's personnel, unsafe or unapproved operation, food handling, employment practices, venue conduct, taxes allocated to Operator, or use outside an Active Site. Bloomjoy's obligation includes claims arising from Bloomjoy's personnel or Bloomjoy's failure to perform a responsibility expressly assigned to it. Prompt notice, reasonable cooperation, control of defense, and consent to any settlement imposing fault or nonmonetary duties are required.

15. Limitation of Liability. To the maximum extent permitted by law, neither party is liable for lost profits, lost revenue, business interruption, or indirect, incidental, special, exemplary, or consequential damages. Bloomjoy's aggregate liability under this Program Agreement will not exceed the Program Fees paid or payable for the affected Active Site during the 12 months before the event. These limits do not apply to payment and settlement obligations, misuse of intellectual property or permit information, breach of confidentiality, indemnification obligations, fraud, gross negligence, willful misconduct, or liability that cannot lawfully be limited.

16. Term; Site Deactivation; Termination. This Program Agreement begins on the Effective Date and continues for the initial term stated above, then renews month-to-month unless the parties select another term. Either party may terminate the Program Agreement or a Site Activation Schedule on 30 days' written notice. A party may terminate for an uncured material breach after 10 days for nonpayment or 30 days for another breach. Bloomjoy may immediately deactivate a site under Section 10. On deactivation, Operator will stop using the permit information, commissary access, and program branding; remove or revise required public-facing identifications as directed; return access items and records; pay accrued amounts; and cooperate in a safe wind-down. Deactivation does not prevent Operator from seeking its own approvals and operating independently once lawfully authorized.

17. Confidentiality and Data. Each party will reasonably protect the other’s nonpublic business, customer, pricing, permit, security, and technical information and use it only for this Program Agreement. The parties may share information with the authority, commissary, venue, insurer, processor, professional advisor, or service provider as reasonably necessary. Each party will comply with applicable privacy and payment-data rules for data it controls and promptly report a known breach affecting the other’s information.

18. Independent Contractors; No General Agency. The parties are independent contractors. Operator has no authority to bind Bloomjoy, incur debt for Bloomjoy, or make a representation on Bloomjoy’s behalf. Any operational direction or limited regulatory role described in an Active Site Schedule exists only to satisfy program and legal requirements and does not create a general employment, partnership, joint venture, or agency relationship. Operator is solely responsible for its employees and contractors, including pay, scheduling, supervision, benefits, and payroll obligations.

19. Governing Law; Notices; General. California law governs, without regard to conflict-of-law rules, and the parties consent to the exclusive state and federal courts in Santa Clara County, California, unless an Active Site Schedule states another lawful forum. Notices must be sent to the addresses above by personal delivery, nationally recognized overnight service, certified mail, or email with confirmation of receipt. Neither party may assign this Program Agreement without written consent, except Bloomjoy may assign it to an affiliate or successor to the relevant business. Waivers and amendments must be written. If a provision is unenforceable, it will be narrowed and the remainder will continue. This Program Agreement and its Active Site Schedules are the complete agreement on this program. Electronic signatures and counterparts are valid. Accrued payment, records, confidentiality, indemnity, liability, and dispute terms survive.

SIGNATURES

TGPACI LLC dba Bloomjoy Sweets

By:

Name:

Title:

Date:

OPERATOR:

By:

Name:

Title:

Date:

EXHIBIT A — SITE ACTIVATION SCHEDULE

This Site Activation Schedule is part of the Program Agreement. It becomes Active only when every required field is complete, all activation conditions are satisfied, and both parties sign below.

Schedule No. / activation date	
Operator	
Site / venue name	
Approved operating address	
Local enforcement agency	
Legal permit holder	
Permit number / expiration	
Approved facility type / activity	
Written agency approval	
Machine model / serial	
Owner of Equipment	
Approved products / ingredients	
Named responsible person	
Authorized operators	
Venue approval / term	

Commissary and Service Plan

Commissary / approved facility	
Commissary permit / contact	
Authorized services	☐ Cleaning ☐ Water ☐ Waste ☐ Ingredient storage ☐ Equipment storage ☐ Other:
Access days / hours	
Storage assignment	
Reporting frequency	
Commissary fee responsibility	
Commissary acknowledgment	☐ Exhibit B attached ☐ Equivalent written acknowledgment attached

Commercial and Settlement Terms

Program Fee	6% of Net Sales
Merchant of record	
Processor / account owner	
Settlement flow	
Report due	15 days after month-end

Payment / remittance due	15 days after month-end
Sales-tax responsibility	
Additional permitted Net Sales deductions	
Site-specific costs	

Insurance and Special Conditions

General liability	Occurrence \$ Aggregate \$
Product / completed operations	
Workers' compensation	
Automobile / property	
Additional insureds	
Schedule term / termination	
Special agency / venue conditions	

Activation Checklist

- ☐ Written agency confirmation or approval attached
- ☐ Commissary acknowledgment attached
- ☐ Venue authorization attached
- ☐ Certificate(s) of insurance attached
- ☐ Responsible person and operator training verified
- ☐ Cleaning, service, and recordkeeping plan approved
- ☐ Payment processor and test transaction verified
- ☐ Public-facing permit holder / operator identification approved
- ☐ Emergency and incident contacts exchanged

BLOOMJOY — SITE ACTIVATION APPROVAL

By:
 Name:
 Title:
 Date:

OPERATOR — SITE ACCEPTANCE

By:
 Name:
 Title:
 Date:

EXHIBIT B — COMMISSARY ACKNOWLEDGMENT

The commissary or approved facility completes this acknowledgment for the site identified below. This form does not replace a document required by the local enforcement agency.

Commissary legal / business name	
Facility address	
Permit number / agency	
Commissary representative	
Bloomjoy permit / program contact	
Operator	
Active Site / machine	
Authorized services	☐ Cleaning ☐ Water ☐ Waste ☐ Ingredient storage ☐ Equipment storage ☐ Other:
Access schedule	
Assigned storage / restrictions	
Fees / payer	
Start / end date	
Required logs	
Special conditions	

The undersigned acknowledges the listed access and services, subject to facility rules, permit conditions, and the right to suspend access for a safety, regulatory, security, or payment issue. The undersigned will notify Bloomjoy and Operator of a material change that affects the listed arrangement.

COMMISSARY / APPROVED FACILITY

By:
Name:
Title:
Date:

BLOOMJOY ACKNOWLEDGMENT

By:
Name:
Title:
Date:

Operator acknowledgment:

Name / title		
Signature / date		

EXHIBIT C — MONTHLY SALES AND COMPLIANCE REPORT

Reporting month	
Site / Schedule No.	
Machine serial	
Merchant of record	
Prepared by / date	

Sales Reconciliation

Line	Description	Amount
A	Gross amounts actually collected	
B	Less sales / use taxes separately stated and actually remitted	
C	Less customer refunds actually paid	
D	Less payment chargebacks actually assessed	
E	Less other deduction expressly allowed by Site Activation Schedule	
F	NET SALES (A – B – C – D – E)	
G	Program Fee percentage	6%
H	PROGRAM FEE DUE (F × G)	
I	Other approved settlement adjustment	
J	Amount paid / remitted with report	

Compliance Certification

Confirm	Monthly requirement	Notes / attachment
☐	Daily cleaning and service logs complete	
☐	Commissary visits / required logs complete	
☐	Only approved products, ingredients, and operators used	
☐	No unreported relocation or material operating change	
☐	No customer illness, contamination, pest, injury, or agency incident—or all incidents attached	
☐	Processor statement and tax support attached or available	
☐	Open corrective actions identified below	
Incidents / corrective actions		
Certification		I certify that this report is complete and accurate and that supporting records will be retained as required by the Program Agreement.
Operator name / title		
Signature / date		
Bloomjoy review / date		